



United States Patent and Trademark Office

Office of the Chief Financial Officer

Form USPTO-OP-073.v4.0 (12/2024)

JUSTIFICATION FOR EXCEPTION TO FAIR OPPORTUNITY (JEFO) (Limited Competition or Sole Source) (FAR 16.505(b)(2))

SECTION I. COMPLETED BY THE PROGRAM OFFICE

Program Office: OCIO/EIDO	Program Office POC: Bahador Moinian
Title of Procurement: Oracle Enterprise Licenses	Acquisition Package #: ACQ-25-0447
Estimated Value (including options)	
Contracting Officer: Victor Martinez	Contracting Officer Phone: (571) 270-1887
Vendor Name (if applicable): AFFIGENT, LLC	Contract or Order # (if applicable): 1333BJ23F00282019

1. Program Office Anticipated Type of JEFO (select from drop-down box) / o Limited Competition (Procurement does not provide a fair opportunity for all Indefinite Delivery Indefinite Quantity (IDIQ) contract holders under FAR 16.505) /

2. Description of the Action

USPTO competitively awarded delivery order 1333BJ23F00282019 to Affigent, LLC on May 12, 2023 to acquire Oracle Enterprise Software Licenses and Support for a total value of [REDACTED]. The period of performance for this delivery order is a one-year base period plus two one-year option periods.

The purpose of this requirement is to procure an additional 62 Oracle Enterprise Software Licenses under delivery order 1333BJ23F00282019 for an estimated price of [REDACTED]. This purchase will also include support until May 11, 2025 for all new licenses for an estimated price of [REDACTED]. The total estimated price for this action is [REDACTED].

3. Description of the Supplies/Services

Net New Licenses				
Item Name	Part no.	License Quantity	Unit Price*	Est. Price*
Oracle Diagnostics Pack - Processor Perpetual	A90649	62	[REDACTED]	[REDACTED]
Oracle Diagnostic Pack Processor Support (PoP: End May 11, 2025)	A90649S	62	[REDACTED]	[REDACTED]
Oracle Tuning Pack - Processor Perpetual	A90650	62	[REDACTED]	[REDACTED]
Oracle Tuning Pack-Processor Support (PoP: End May 11, 2025)	A90650S	62	[REDACTED]	[REDACTED]
Oracle Database Enterprise Edition - Processor Perpetual	A90611	62	[REDACTED]	[REDACTED]
Oracle Database Enterprise Edition-Processor Support (PoP: End May 11, 2025)	A90611S	62	[REDACTED]	[REDACTED]
			Total Price	[REDACTED]

*Estimated pricing above reflects offered discounts. Valid through April 4, 2025.

See Attachment 1, Pricing, for a detail listing of all licenses included under delivery order 1333BJ23F00282019.



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4. Other Facts Supporting the Justification

Delivery order 1333BJ23F00282019 was competitively awarded to Affigent, LLC on May 12, 2023 with a 12-month base period and three 12-month option periods. The current period of performance is Option Period 1, May 12, 2024 through May 11, 2025.

USPTO's initial estimate for this action was \$3.5M for the additional licenses and corresponding support. During negotiations, Oracle—through Affigent—proposed a total price of [REDACTED]. Oracle's quote represents estimated savings of [REDACTED]. However, this offer was only made valid until April 4, 2025.

SECTION II. COLLABORATION BETWEEN THE PROGRAM OFFICE AND OP

5. Adjudicated Type of JEFO (select from drop-down box) / o Sole Source (Procurement of supplies or services that is entered into or proposed to be entered into by an agency after soliciting and negotiating with only one source.)) /

6. Exception to Fair Opportunity and Supporting Rationale

FAR 16.505(b)(1)(i) requires the Contracting Officer to provide each awardee under a multiple award contract, a fair opportunity to be considered for each order exceeding the micro purchase threshold (MPT) unless a statutory exception applies. The specific statutory exception to the fair opportunity process for this sole source award is FAR 16.505(b)(2)(i):

(C) The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

For the reasons explained below, Officer of the Chief Information Officer (OCIO) technical leads have concluded that the specialized services required for this effort are only available from one brand: Oracle.

The Oracle brand of relational database management system (RDBMS) software is the only brand that meets USPTO's requirement. Oracle software has been in use at USPTO for more than 18 years and it is the primary RDBMS for Patents, Trademark, Corporate, Finance and Infrastructure applications.

The use of any other manufacturer's products would require an entire overhaul of the USPTO's legacy database systems and PE2E, TMNG, and FPNG systems that would include redesign and redevelopment of the existing platforms at an estimated cost exceeding [REDACTED].

Changing from Oracle would also result in product non-conformity and increased training and maintenance costs. Additionally, the USPTO must currently maintain the existing systems while trying to re-architect, re-design and build new systems with a different RDBMS. Continuing with Oracle will ensure no interruptions and provide seamless integration and performance.

The continued use of Oracle products requires licensing that only an Oracle reseller like Affigent, LLC can provide. Given the type of licenses that have been purchase under delivery order 1333BJ23F00282019, the period of performance remaining in the order, and the period of validity of



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the offered discounts, estimated at [REDACTED] a sole source modification is the most advantageous method of purchasing the additional licenses.

7. Actions to remove or overcome barriers to fair opportunity before subsequent acquisition

Oracle products are widely available on the commercial market through various resellers. The USPTO will continue to assess the market and plans on competing future Oracle requirements amongst authorized resellers after the expiration of delivery order 1333BJ23F00282019. Further, USPTO will continue to explore the extent to which it can migrate to non-brand systems as stabilization and modernization efforts proceed.

SECTION III. COMPLETED BY OP

8. Determination by the Contracting Officer that estimated cost will be fair and reasonable.

The Contracting Officer will finalize a price reasonableness determination, appropriate to the contract type, prior to contract award. Detailed documentation and justification of price reasonableness will be disclosed in the Acquisition Form Documentation (AFD) to be prepared upon completion of negotiations.



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Form USPTO-OP-073.v4.0 (12/2024)

SECTION IV. REVIEW AND APPROVAL

1. Technical Certification

By signature below, the Technical Representative certifies that the supporting data necessary to form the basis for this justification is accurate and complete to the best of their knowledge and belief. Furthermore, the Technical Representative certifies that the justification has been adjudicated by the Program Office and OP.

[Redacted Signature]

Technical Representative Digital Signature

2. Contracting Officer's Certification

By signature below, the ordering activity Contracting Officer certifies that this justification is accurate and complete to the best of their knowledge and belief.

[Redacted Signature]

Contracting Officer's Digital Signature

3. Office of General Law (OGL) Counsel (required for actions valued [Redacted])

N/A ☐

By signature below, the ordering activity OGL Counsel deems this justification legally sufficient.

[Redacted Signature]

Office of General Law Counsel's Digital Signature

4. Level above Review (LAR) (see PM 2017-01 for definition) (required for actions at all dollar values except when LAR serves in another review/approval role)

N/A ☐

By signature below, the ordering activity LAR certifies that this justification is accurate and complete to the best of their knowledge and belief.

[Redacted Signature]

Level Above Review's Digital Signature

5. Competition Advocate Approval: Approval (required for actions valued [Redacted]) Concurrence (required for actions valued at or above [Redacted])

N/A ☐

In accordance with FAR 16.505(b)(2)(C)(2) the Competition Advocate certifies that they have reviewed this justification and has determined that sufficient facts exist to support the justification.

[Redacted Signature]

Competition Advocate Digital Signature



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Section V. Attachments [AS REQUIRED]

Attachment 1 – Pricing. Pricing list for current and additional Oracle licenses.